Swiss Ephemeris Professional License contract
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between

Astrodienst AG, Dammstr. 27, 8702 Zollikon / Zürich, Switzerland

and

Name: _____

Address: _____

_____

Phone: _____

Email: _____

called licensee below

about the permission to use the software
SWISS EPHEMERIS™ PROFESSIONAL EDITION.

This contract is for

[X] a license at CHF 700.- for an unlimited number of projects developed and/or maintained by the licensee.

1. **Parts of SWISS EPHEMERIS**
The software library Swiss Ephemeris consists of

- the C source code for the Swiss Ephemeris library,
- a documentation of library's API,
- demo programs with source code which demonstrate how to use the most important functions,
- the Swiss Ephemeris data files containing compressed numerical data in a proprietary format.
- Compiled DLL libraries for Windows may be or not be provided at Astrodienst's discretion.

These items are downloaded by the licensee from the Github repository provided by Astrodienst: https://github.com/aloistr/swisseph

2. **Validity of license for projects**

The license is valid for distributed software apps: The licensee develops a software app for which the copyright is held by the licensee. In this software he uses calls to functions of the Swiss Ephemeris for calculating astrological or astronomical positions. Even when the distributed app contains no calculation code itself but requests calculation from a server providing it, this is considered an app containing Swiss Ephemeris.

The license is also valid for software use on a server: The licensee develops software for which the copyright is held by the licensee. The software runs on a server. This software contains calls to functions of the Swiss Ephemeris for calculating astrological or astronomical positions. End users use an internet browser to connect to the server.

3. **Exclusion of API services for third parties**

If the licensee provides API services to third parties, i.e. to a business not owned by the licensee, this third party needs to purchase their own Swiss Ephemeris license, before they can legally begin using the API services. The licensee mentions that fact clearly in the documentation of his API service.
The licensee obliges himself to inform Astrodienst about the identity and contact of each API service user.

4. **Duration of the license and renewal:** A license is valid for 6 years. It then has to be renewed or the use of Swiss Ephemeris in web services or

distributed software has to be terminated.

5. **Distribution of source code:**
   The licensee is permitted, but not required to distribute the Swiss Ephemeris source code together with his software app.
   If the licensee chooses to distribute the source code, he must include the complete Swiss Ephemeris source code. If he has made changes to the original source code, he is subject to the same conditions for those changes as laid down in the AGPL.
6. **Graphical label:** The licensee can use the labels SWISS EPHEMERIS and SWISS EPHEMERIS Inside on the packaging, in the handbook and in the promotion of his software or service to show that in his software the Swiss Ephemeris is used and contained.
7. **Reference copy:** If the licenses develops distributed software apps, and if Astrodienst requests a sample copy of this app, the licensee offers the copy to Astrodienst free of charge.
   Astrodienst can use this free sample software only within its own company's operations. The software cannot be sold or given away for free to third parties. Astrodienst can however give the software to an employee with the same restrictions of use.
8. **Features and Quality:** The content and the features of the software are described in the documentation (file swisseph.htm on the Internet and swisseph.doc on the download area). Astrodienst is however not bound by this description. Astrodienst is free to change features and implementation at will. The licensee accept the Swiss Ephemeris as it is. Astrodienst does not guarantee the correctness of the calculation or the fitness of the Swiss Ephemeris for any purpose. Astrodienst will however make a reasonable effort to fix bugs in the software module.
9. **Use of author's names:** The licensee will refrain from mentioning Astrodienst AG, Dr. Alois Treindl, Dieter Koch or other authors of the Swiss Ephemeris in the context of his software, neither in the documentation, the software itself or in advertising and promotion. All exceptions require permission by Astrodienst in writing for each distinct case.
10. **Copyright:** The licensee must not remove or modify any copyright notices placed by Astrodienst or other contributors in source files, library files or binary ephemeris files.
11. **Support:** The licensee receives support from the Swiss Ephemeris user community via the mailing list at https://groups.io/g/swisseph/ (mailing list location may change in the future).
12. **Additional asteroid files:** These can be downloaded from the public distribution areas as described on Github
    https://github.com/aloistr/swisseph
13. **Use of language bindings and ports**
    All existing legal language bindings and ports of Swiss Ephemeris are required to honor the dual licensing model Astrodienst has chosen for Swiss Ephemeris. This means that the language binding or port most be available under open source AGPL and under Astodienst's professional license.
    No extra fees may be charged by authors of such language bindings or ports.
    Astrodienst knows that this condition is met by
    - Php binding https://github.com/cyjoelchen/php-sweph
    - Python binding pysweph https://github.com/sailorfe/pysweph
    - Python binding pyswisseph (currently unsupported)
    https://github.com/astrorigin/pyswisseph
    - Java JNI binding https://github.com/krymlov/swe-jni-lib
    - node bindings https://www.npmjs.com/package/swisseph
14. **Payment**
    The licensee uses the online shop to pay for the license.
    https://www.astro.com/swisseph/swephprice_e.htm
    The license becomes only valid after complete payment.

15. **Transfer of the license**

The licensee if permitted to transfer the license to a third party. The licensee informs Astrodienst via email about the transfer. After the transfer, the original licensee no longer holds a Swiss Ephemeris license.
All rights and obligations connected with the license have gone over to the new license owner.

16. **Place of court** for disagreements arising from this contract is Meilen, Kanton Zürich, Switzerland.

For Astrodienst AG: Zollikon _____, _____

The licensee: _____, _____